

25STCV23121 25STCV23121

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-07-27

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C730%2C07%2F27%2F2026

Source SHA-256: 0e3b21d7cc4f28e23f9dcf1479d61c9fce285bf7a9fe19da994591f64549beab

Case Number: 25STCV23121 Hearing Date: July 27, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

JONATHAN

FINDLEY,

Plaintiff,

vs.

DAVID

FRANKLIN PALLEY, et al.

Defendants

Case No.:

25STCV23121

Hearing

Date:

July 27, 2026

ORDER

GRANTING MOTION TO VACATE DEFAULT

I. BACKGROUND

Defendant David Franklin Palley ("David") and Lucia Berenice Palley ("Lucia") allegedly transferred their real property for insufficient consideration to Defendants Syuzanna Adamyan ("Adamyan") and Samvel Kbushyan ("Kbushyan") in order to hinder their creditors, such as Plaintiff Jonathan Findley ("Findley"). Findley sued Defendants for three causes of action, including fraudulent transfer.

On December 31, 2025, the Court entered default against Kbushyan.

On March 25, 2026, Kbushyan filed the instant motion to vacate entry of default. Findley filed an opposition. Kbushyan filed a reply.

II. LEGAL STANDARD

Code

of Civil Procedure section 473, subdivision (b),^[1]

allows the Court to vacate dismissal, default or any other order taken against a party via the party's own mistake, inadvertence, surprise or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein.

"Section

473(b) provides for both discretionary and mandatory relief. [Citation.]"

(Pagnini v. Union Bank, N.A. (2018) 28 Cal.App.5th 298, 302.) The

discretionary provision grants relief based upon a party or legal representative's mistake, inadvertence, surprise, or neglect. The discretionary provision states in pertinent part:

"The

court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy

of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.”

The
mandatory provision states in pertinent part:

“Notwithstanding
any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney’s affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.”

“The purpose of this mandatory relief provision is to
alleviate the hardship on parties who lose their day in court due to an
inexcusable failure to act by their attorneys.

[Citation.]” (Rodriguez v.
Brill (2015) 234 Cal.App.4th 715, 723.)

Section
473, subdivision (d) provides: “[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.”

III. DISCUSSION

A. Relief Pursuant to Section 473, Subdivision

D

Kbushyan

first requests the Court vacate default pursuant to section 473, subdivision (d), as service on Kbushyan was defective. Section 473, subdivision (d), allows the Court to correct clerical mistakes in judgment or orders and to set aside any void judgment or order. If, for example, service was never properly effectuated, the Court may vacate default entered after improper service.

Kbushyan

argues Findley did not sufficiently attempt to personally serve Kbushyan prior to serving Kbushyan via substitute service. The filed proof of service for Kbushyan only mentions the single successful service attempt, in which Findley's process server served Kbushyan via substitute service by leaving a copy with a mailroom clerk. (See 11/21/25 Proof of Service by Substituted Service.) However, Findley provided further documentation demonstrating four service attempts by other process servers, all without success. (Opp., Thaler Decl. ¶ 4, Ex. 1.) "Ordinarily, ... two or three attempts at personal service at a proper place should fully satisfy the requirement of reasonable diligence and allow substituted service to be made." (Espindola v. Nunez (1988) 199 Cal.App.3d 1389, 1392.) Kbushyan himself describes the served addresses as "reasonably known address[es]" for Kbushyan, indicating these are proper places for service. Therefore, the evidence shows Findley's process server had made sufficient attempts to warrant substitute service.

There

is no evidence to suggest service was improper. As the underlying service was proper, the Court has no basis to amend entry of default on this basis.

B. Relief Pursuant to Section 473,
Subdivision B

Kbushyan

next requests the Court vacate default pursuant to section 473, subdivision (b), as default was entered due to Kbushyan's mistake, inadvertence, surprise, or excusable neglect. In order for a court to grant relief pursuant to the discretionary provision of section 473, subdivision (b), a request for relief must be made within 6 months of entry of default. It must contain a copy of a proposed pleading.

Kbushyan's

motion was filed on March 25, 2026, less than 6 months after entry of default on December 31, 2025. Therefore, this motion is timely. It also contains a copy

of Kbushyan's proposed pleading. (Mot., Kbushyan Decl. 12, ¶ A.) Kbushyan satisfies all procedural requirements for this motion.

Kbushyan

attests default was entered due to inadvertence, mistake, surprise or excusable neglect, as Kbushyan does not regularly check the served address for mail, as it is a "non-United States Postal Service post office box only." (Id. at ¶ 6.) Kbushyan does not routinely receive legal correspondence or business mail at the address. (Ibid.) Upon checking this mailbox on January 7, 2026, Kbushyan sought legal counsel to address these claims. (Id. at ¶ 8.)

The

Court finds Kbushyan failed to act due to inadvertence; although a proper address for service, it was not an address Kbushyan was in the habit of checking regularly. Kbushyan did not attempt to avoid filing a timely answer but rather was unaware of the service due to inadvertence. Based on these circumstances, the Court exercises its discretion and grants the motion.

The

Court notes Findley requests, if this motion is granted, the Court set aside Findley's request for dismissal. Findley must make this request in a separate motion or simply reinstate the dismissed parties, as all parties were dismissed without prejudice.

IV. CONCLUSION

Defendant

Samvel Kbushyan's motion to vacate default is GRANTED.

Kbushyan is ordered to give notice.

DATED:

July 27, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.